Performance Appraisals

An effective appraisal and performance management process can have a significant impact on an organization's culture, staff morale and employee engagement levels – all of which enhance the Foundation's brand and support the retention of key talent. There is a debate as to whether traditional appraisal systems are still effective for the needs of an evolving workforce. Organizations such as Deloitte have announced that they are moving towards more ongoing discussions and feedback with employees. Whether it's traditional six or twelve-month reviews and appraisals, or ongoing one-to-ones and performance catch ups, the important element is that there is a clear and consistent approach to performance management and reviews. The most significant benefit of the appraisal system is that it provides a document of employee performance over a specific period of time, which is a significant risk mitigant. The policy and procedure below is an example of a system conducted twice a year. Considering the Deloitte process is something which the Foundation should undertake. Regardless of whichever process is used, it's critical that there is a formalized process with documentation in place. The policy below refers to a Performance Appraisal Form. There are many such forms being used across the CFC network. Check with your CFC colleagues or the national office for samples and amend to fit your appraisal process.

Policy and Procedure Statement

All staff of the Foundation shall receive performance reviews after six months and one year. In the second year of employment, performance reviews for new employees will be conducted annually at the same time as other Foundation employees. The Chair of the Board of Directors evaluates the performance of the ED/CEO. Employees' immediate supervisor evaluates the performance of the employees whom they are supervising.

Procedures:

1. Support employees will be notified in writing at least two weeks prior to the date of the performance review. A blank copy of the "Performance Appraisal" form, with the exception of the "Goals and Objectives" section, will be provided to the employee. Employees are asked to fill out the evaluation based on how they would appraise themselves. The evaluation form needs to be completed and returned to the Chief Executive Officer within one week.
2. The employee's supervisor will complete the "Performance Appraisal" form, with the exception of the "Goals and Objectives" section prior to meeting with the employee.
3. During the review, the supervisor and the employee will review the evaluation and an open discussion will be encouraged. At this time, the employee and their supervisor will discuss and develop the "Goals and Objectives" for the next year. This will be completed on the form provided.
4. When both parties feel confident about the outcomes of the review and the development of the goals and objectives, the "Performance Appraisal" form will be signed.
5. A copy of the appraisal will be placed in the employee's personnel file.

Pay increases may be considered after the probationary period of six months and thereafter on the one-year anniversary date and shall be at the discretion of management in accordance with annual and local inflation. Pay increases for performance may be considered annually on the one-year anniversary date thereafter.

Decisions with regard to rate increases are determined using the following criteria:

- Job and technical knowledge
- Problem solving and judgment
- Quality of work
- Quantity of work
- Teamwork and cooperation
- Communication, and,
- Self-management.

It is the expectation of the Foundation that wages shall not be discussed between employees.

SECTION 7

Problem Resolution

Progressive Discipline

Employee discipline is a necessary evil for most employers. It's never fun to do and can lead to unhappy employees. Moreover, there is always the risk that discipline will lead to discrimination or other work-related claims, whether merited or not. But the long-term consequences of neglecting employee discipline can soon outweigh the short-term discomfort of doing so. Although there is not a way to make employee discipline completely pain free, implementing a progressive discipline policy can help alleviate some of the discomfort.

A progressive discipline policy provides many benefits to employers and employees. Along with other benefits, the policy provides structure and predictability to the discipline process, sets a basic set of discipline standards for supervisors to follow, helps supervisors document disciplinary actions and can be instrumental in defeating discrimination, unemployment, and other work-related claims.

The policy below is a best practice and it is advisable that your Foundation check with legal counsel to ensure that risk is mitigated and that the process is fair and transparent.

Policy and Procedure Statement

The Foundation will use progressive discipline for all employees whose performance requires improvement. The purpose of the process is to correct, not punish, those employees who have not followed Foundation guiding principles, policies and procedures. Consistent and fair procedures for progressive development give employees ample opportunity to improve.

Definitions:

Progressive discipline:

- Emphasizes correction and establishes clear goals to help employees change from unsatisfactory performance to satisfactory performance.
- Focuses on the performance rather than the person.

Procedures:

1. The employee's supervisor will implement progressive discipline when addressing performance issues.
2. If, through the application of progressive discipline, conduct or performance problems are unable to be resolved, the Foundation will institute a process, which will result in increasingly directive actions to correct the employee's performance. The employee's supervisor will follow a consistent procedure to:
    - Let employees know that continuing improper actions will lead to increasingly directive corrective actions, up to and including termination.
    - Provide a written report on all actions taken.
3. The steps in the effective disciplinary process are as follows:
    - Verbal warning (with written documentation)
    - Written Warning (and privately hold a second discussion with that employee regarding conduct)
    - 2nd written warning or suspension with or without pay (this may be purged from the employee's file if there is no recurrence over the next 24 months)
    - Termination

Complaint and Anti-Harassment Policy

All employers are responsible for providing a workplace free from harassment. Employers are obligated to take appropriate action against any employee, volunteer or contractor who harasses someone. Otherwise, an employer can be held responsible for harassment committed by them. Adopting a harassment policy can foster an environment of respect for human rights and helps people in the organization understand their rights and responsibilities. Policies can protect an organization from discrimination complaints. The policy below, created by an Alberta-based foundation, is a template upon which your Foundation can base your policy. The Canadian Human Rights Commission also has anti-harassment policy templates, which can be found at www.chrc-ccdp.gc.ca/en. Appendix A includes links to provincial human rights legislation and regulations.

Policy and Procedure Statement

The Foundation will ensure every employee, volunteer and contractor fair and equal treatment and consideration. According to the Alberta Human Rights Code, harassment is engaging in an abusive or vexatious course of comment or conduct that is known or ought reasonably to be known to be unwelcome. It is a form of discrimination and can include behaviour such as demands, threats, gestures, innuendo, unwelcome remarks, jokes, slurs, display of offensive material, physical or sexual assault or taunting about a person's body, clothing, habits, customs or mannerisms. Harassment can also include inappropriate or unwelcome comments regarding a person's physical characteristics and/or mental health.

The Foundation has a legal obligation to ensure the safety and well-being of all employees, volunteers and contractors therefore, depending on the nature and gravity of an incident, the Foundation reserves the right to conduct an investigation regardless of whether or not a formal complaint has been filed.

It is the responsibility of any employee, volunteer or contractor experiencing or aware of any type of harassment within the Foundation to report the situation to their supervisor. The supervisor is to confirm the employee, volunteer or contractor has taken steps to resolve per the following procedure.

Harassment and Discrimination Prevention

The Foundation is committed to providing every employee, volunteer or contractor with a workplace free from harassment and discrimination, whether prohibited by human rights legislation or otherwise. The Foundation will not tolerate incidents of harassment or discrimination brought to its attention and will act swiftly to investigate and resolve all such manners.

The Foundation recognizes that employees, volunteers and contractors may also be subject to harassment and discrimination from others who conduct business with the Foundation. In these circumstances, because this policy is intended to apply in all cases of harassment and discrimination, the Foundation will assist and support the person affected by the harassment or discrimination.

The Foundation also recognizes that prohibited harassment and discrimination can occur at places other than the physical workplace. Employees, volunteers and contractors have the right to be free from harassment and discrimination in all locations where work is conducted on behalf of the Foundation, or where the individual is present at the location only by virtue of their work with the Foundation.

Definitions:

Discrimination: Means any action, inaction or behaviour which negatively affects the status of an employee or anyone with whom he/she comes into contact at the Foundation. It is also the treatment of anyone unequally, on the basis of any prohibited ground under human rights legislation, such as sex, race, colour, creed, religion, national or ethnic origin, age, disability, family or marital status or sexual orientation.

Workplace: The workplace is not solely the office in which business of the Foundation is conducted. Any improper conduct occurring outside of the office but having repercussions in the work environment and adversely affecting employment, volunteer or contractor relationships may also be defined as workplace harassment.

Verbal Harassment: Foul or obscene language, derogatory racial comments, demeaning ethnic jokes or slurs, unwanted sexual comments, implied or expressed promises of reward for complying with, or threats or reprisal for not complying with, a sexually oriented request.

Physical & Sexual Harassment: These include practical jokes, pushing, shoving, aggressive behavior and the like. Acts of sexual harassment include any unwanted physical contact, unnecessary touching, or physical interference with work or movement.

Visual Harassment: These include obscene gestures, demeaning posters, cartoons, graffiti or drawings which are shown to an individual or group or displayed in plain view. Where these have a sexual orientation, this will constitute sexual harassment.

Procedure:

Where, in the opinion of the employee, volunteer or contractor unfair treatment has been rendered or a problem arises, the following procedure shall be followed.

1. If possible, immediately tell the person whom you feel is harassing you that their conduct or behaviour is unwelcome and that you wish it to be stopped.
2. Make some notes about what happened (what was said or done), when it happened (date, time and place), who was involved and who may have witnessed the incident. You will want these details to refresh your memory and in case the problem is not corrected and you have to take the matter further.
3. If the harassing behaviour continues, or if you feel unable to approach the harasser directly about this problem, report the incident to the appropriate supervisor within seven (7) days of the incident. If the supervisor is the cause of the problem the situation should be discussed with the ED/CEO. If the ED/CEO is the cause of the problem the situation should be discussed with the Board Chair. The employee, volunteer or contractor has the choice of either discussing the problem (in the case of an informal concern) or submitting a formal or written concern.
4. In cases where the concern can be corrected in an informal manner, the supervisor (or Chair of the Board) may discuss the situation with everyone involved, develop an action plan, and check with the employee periodically to ensure the problem is being resolved.
5. In cases where the concern has been put in writing a full investigation will be carried out, every effort will be made to resolve the problem to the employee's satisfaction.
6. If the supervisor has been unable to resolve the situation within (10) working days, the supervisor shall take the matter to the ED/CEO. The ED/CEO shall attempt to resolve the issue within seven (7) working days. If the ED/CEO has been unable to resolve the situation, the matter will be taken to the Board Chair. The Chair of the Board, in consultation with two Board members, shall attempt to resolve the issue within seven (7) working days.
7. Should the matter remain unresolved after the above steps have been taken, the employee shall retain the right to refer the issue with the appropriate legal body without fear of recourse. The Foundation shall retain the right to dispute the complaint as it feels necessary.

Right to Discipline

Nothing in this Policy shall be deemed to limit or in any other way affect the right of the Foundation to discipline employees for violations under this policy, or other breaches, whether or not the action was part of the violation under this Policy.

Prevention of misapplication of the policy

Purposeful misapplication of the processes by anyone will lead to appropriate consequences, including some form of discipline as the misapplication of this policy is inappropriate behaviour. It is a misapplication of this policy to make a false report against another employee, volunteer or contractor. False, vexatious or malicious harassment complaints may result in disciplinary action, up to and including termination of employment or relationship with Foundation.

SECTION 8

Change of Status

Resignation & Termination

Having clear processes for when employees leave your Foundation can mitigate legal risks and negative feelings.

Policy and Procedure Statement

Employees are requested to provide written notice to their immediate supervisor of their intended resignation.

Employees giving notice or receiving notice of termination will receive a record of employment, together with all wages outstanding, including any vacation pay accrued.

All cases of employer termination shall comply with provincial/federal employment standards legislation.

Issuing References

No opinions on an employee's competency or qualifications should come through a reference. Only standard issue HR information should be in the reference. True, the difficult burden of proving a former employee didn't get a new job because of your reference lies with the employee, but a disgruntled employee could still make you litigate or alternatively the new employer could sue if the old manager didn't mention something important. Having a neutral policy that applies to everyone means that your Board and lawyer sleep better at night.

Policy and Procedure Statement

It is the policy of the Foundation to respect the confidentiality of employee records and therefore discretion and sensitivity are used when issuing references and employee verification.

Procedure:

Letters of reference will be issued at the request of the employee and will include employee name, title, dates of employment, a brief overview of key tasks and accomplishments, and rate of pay (if requested by employee).

APPENDIX A

Legislation affecting relationship between employers and employees in Canada's provinces and territories

ALBERTA

Employment Standards Code and Regulations

The Employment Standards Code establishes Alberta's minimum standards of employment in many areas including payment of wages, hours of work, overtime, vacation, and holidays, leaves and termination of employment. It establishes the processes by which an employee can seek recourse if the standards have not been met.

https://www.alberta.ca/alberta-employment-standards-rules.aspx

Alberta Human Rights Act

The Alberta Human Rights Act prohibits discrimination in employment based on the grounds of race, colour, ancestry, place of origin, religious beliefs, gender, gender identity, gender expression, age, physical disability, mental disability, marital status, family status, source of income and sexual orientation. Employers are expected to create an inclusive workplace that respects the dignity of every individual. Employees can also play an important role in creating an inclusive workplace by understanding their rights and responsibilities under the AHR Act.

https://www.albertahumanrights.ab.ca/employment/employer_info/Pages/employer_rights_and_responsibilities.aspx

Many of the human rights protected under the Canadian Human Rights Act are specific to First Nations. The Human Rights Handbook for First Nations was created specifically for people who work for First Nations governing bodies responsible for providing service to First Nations communities.

http://nwthumanrights.ca/wp-content/uploads/2020/05/fn_handbook.pdf

Personal Information Protection Act

This act is Alberta's private sector privacy law and includes rules for how organizations collect, use, and disclose personal employee information and limits how that information can be used.

https://www.alberta.ca/personal-employee-information.aspx

Labour Relations Code

The Code outlines the rights and responsibilities of employers, trade unions and employees in labour relations. In Alberta, the Code guarantees that employees have the right to collective bargaining with employers. The Code creates ways for employees to choose trade union representation.

http://www.alrb.gov.ab.ca/guide/guide.pdf

Workers Compensation Act

The Workers' Compensation Act creates the Workers' Compensation Board (WCB) as a corporation and grants it authority to administer a system of workplace injury insurance for the workers and employers of the province of Alberta. WCB insurance coverage is mandatory for most employers and workers in Alberta. It is the only insurance that offers protection from lawsuit for all parties covered by WCB.

https://www.wcb.ab.ca/

BRITISH COLUMBIA

Employment Standards Act

B.C. has minimum standards for wages and working conditions for most workplaces in the province. The Employment Standards Act sets out rules on hours of work, time off, notice, severance pay and other topics.

https://www2.gov.bc.ca/gov/content/employment-business/employment-standards-advice/employment-standards

Human Rights Code

The Human Rights Code forbids discrimination in employment. Employers and others have a duty not to discriminate regarding employment. This includes a duty to take all reasonable steps to avoid a negative effect based on a personal characteristic. Many of the human rights protected under the Canadian Human Rights Act are specific to First Nations. The Human Rights Handbook for First Nations was created specifically for people who work for First Nations governing bodies responsible for providing service to First Nations communities.

http://nwthumanrights.ca/wp-content/uploads/2020/05/fn_handbook.pdf

Personal Information Protection Act

Under the act, individuals have the right to access their own personal information. The law also states the rules by which organizations can collect, use and disclose personal information from customers, clients and/or employees.

https://www2.gov.bc.ca/gov/content/employment-business/business/managing-a-business/protect-personal-information

Accessibility Act

The Act had its first reading in May 2018. To gather feedback in preparation for the development of the law and its standards and policies, the government held a public engagement from September 16 to November 29, 2019, allowing citizens to provide feedback and ideas to help inform the legislation.

Occupational Health and Safety Regulation

The Regulation contains legal requirements that must be met by all workplaces under the inspectional jurisdiction of WorkSafeBC and covers most workplaces in B.C. The purpose of the Regulation is to promote occupational health and safety and to protect workers and other persons present at workplaces from work-related risks to their health, safety, and well-being.

https://www.worksafebc.com/en/law-policy/occupational-health-safety/searchable-ohs-regulation/ohs-regulation/part-03-rights-and-responsibilities#SectionNumber:3.2

Workers Compensation Act

The occupational health and safety provisions of the Act address matters such as the rights and responsibilities of workplace parties, joint committees and worker representatives, the right to refuse unsafe work, accident reporting, investigations, enforcement, offences, and administrative procedures. The Act is administered by WorkSafeBC.

https://www.worksafebc.com/en/for-employers

MANITOBA

Employment Standards Code

The Employment Standards Code provides employers and employees with information regarding minimum wage standards, protection for young workers, paying wages and more.

https://www.gov.mb.ca/labour/standards/doc,quick_guide,factsheet.html

Human Rights Code

The Human Rights Code is Manitoba's provincial human rights law. It protects individuals and groups in Manitoba from discrimination and is administered by the Manitoba Human Rights Commission.

http://www.manitobahumanrights.ca/v1/education-resources/resources/reasonable-accommodation.html

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http://nwthumanrights.ca/wp-content/uploads/2020/05/fn_handbook.pdf

Accessibility for Manitobans Act

The Act outlines a clear and proactive process to identify, remove and prevent barriers in key areas of daily living, including employment. The Accessibility Standard for Employment calls on all employers to have measures, policies and practices to provide reasonable accommodations for employees and applicants. Employers need to consider reasonable accommodation at various stages of employment as it applies to their organizations. This includes recruitment, offer of employment, on the job, return to work, and training.

http://www.accessibilitymb.ca/business-and-non-profit-employment.html

Workplace Safety and Health Act

The Act and associated regulations are in place to protect the safety and health of workers in Manitoba. From policy to training to providing proper equipment, employers have a responsibility to do their best to keep workers safe on the job.

https://www.safemanitoba.com/Roles/Pages/Employer.aspx

Workers Compensation Board

Workers compensation coverage is required for most businesses in Manitoba. If you are in a mandatory industry, everyone who works for your business is considered a worker and is entitled to WCB coverage regardless of: the number of hours they work or the structure of their pay. The main categories of workers that are not covered by traditional workers' compensation are: business owners, volunteers, independent contractors, federal employees, railroad employees, and longshoremen.

https://www.wcb.mb.ca/workers-compensation-coverage

NEW BRUNSWICK

Employment Standards Act

The Employment Standards Act sets minimum rights and responsibilities for all provincially regulated employers and employees in the province, governing such things as wages, vacation pay, public holiday pay and various leaves, among other things.

https://www2.gnb.ca/content/gnb/en/departments/post-secondary_education_training_and_labour/People/content/EmploymentStandards.html

Human Rights Act

The Act, which is often called the Human Rights Code, is a provincial law that prohibits discrimination and harassment based on 16 prohibited grounds of discrimination (with specific provisions for sexual harassment and reprisal) in specified activities that fall under provincial jurisdiction. It is the principal legal instrument through which equality rights are enforced in the province.

https://www2.gnb.ca/content/gnb/en/departments/nbhrc/human-rights-act/summary.html

Many of the human rights protected under the Canadian Human Rights Act are specific to First Nations. The Human Rights Handbook for First Nations was created specifically for people who work for First Nations governing bodies responsible for providing service to First Nations communities.

http://nwthumanrights.ca/wp-content/uploads/2020/05/fn_handbook.pdf

Occupational Health and Safety Act

The Act and corresponding regulations contain legal requirements that must be met by all New Brunswick workplaces ensuring employers take every reasonable precaution to ensure the health and safety of employees.

https://www.worksafenb.ca/media/58747/ohs-by-numbers-les-chiffres-et-lois-sst.pdf

Workers Compensation Act

Under the WC Act, all employers with three or more workers at any time during the year must register for coverage with WorkSafeNB. These workers may be full-time, part-time, casual workers or non-registered contractors, subcontractors, or brokers. This is referred to as mandatory coverage.

https://www.worksafenb.ca/media/59384/guidefornbemployers.pdf

NEWFOUNDLAND AND LABRADOR

Labour Standards Act

The Labour Standards Act requires all employers establish conditions of employment that meet at least the legislated minimum standards in areas such as hours of work, minimum wage, leave entitlements, termination of employment, paid public holidays, vacation, etc.

https://www.gov.nl.ca/aesl/files/labour_relations_work.pdf

Human Rights Act

The Act protects people from discrimination and harassment. The Human Rights Act recognizes the inherent dignity and worth of all people, that we all have equal rights and opportunities and should live free from discrimination and harassment. Discrimination is treating someone unfairly because of their personal characteristics, such as their race, age, sex, or disability. These characteristics are also called prohibited grounds. Harassment is a form of discrimination. It happens when a person experiences unwanted and offensive comments and/or conduct because of their personal characteristics. https://thinkhumanrights.ca/. Many of the human rights protected under the Canadian Human Rights Act are specific to First Nations. The Human Rights Handbook for First Nations was created specifically for people who work for First Nations governing bodies responsible for providing service to First Nations communities.

http://nwthumanrights.ca/wp-content/uploads/2020/05/fn_handbook.pdf

Workplace Health, Safety and Compensation Act

The Act imposes certain minimum conditions on all workplaces that ensures that workers are provided with an environment that neither impairs their health or imperils their safety. An employer shall ensure, where it is reasonably practicable, the health, safety and welfare of his or her workers. (g) shall cooperate with a person exercising a duty imposed by this Act or regulations. Employers that do business and have employees in Newfoundland and Labrador must register with WorkplaceNL and pay assessments based on their workers' earnings.

https://workplacenl.ca/employers/

Accessibility Act

The Government of Newfoundland and Labrador is committed to working with advocacy groups and community stakeholders to create new accessibility legislation. The purpose of this legislation is to prevent and remove barriers faced by persons with disabilities. The Disability Policy Office has partnered with the Public Engagement Division, as well as the Coalition of Persons with Disabilities (the coalition) and the Provincial Advisory Council for the Inclusion of Persons with Disabilities (the advisory council) to conduct public engagement process that will inform the proposed legislation.

https://www.engagenl.ca/engagement-initiatives/accessibility-legislation

NOVA SCOTIA

Labour Standards Code

The Labour Standards legislation sets out the minimum employment rules in Nova Scotia that employers and employees have to follow. It also sets out rules specific to the recruitment of workers and the hiring of foreign workers. Employees, employers, and recruiters have rights and responsibilities under these rules.

https://novascotia.ca/lae/employmentrights/docs/labourstandardscodeguide.pdf

Human Rights Act

The Act prohibits actions that discriminate against people based on a protected characteristic (20 in total) in combination with a prohibited area, which includes employment.

https://humanrights.novascotia.ca/know-your-rights/businesses-and-other-organizations

Many of the human rights protected under the Canadian Human Rights Act are specific to First Nations. The Human Rights Handbook for First Nations was created specifically for people who work for First Nations governing bodies responsible for providing service to First Nations communities.

http://nwthumanrights.ca/wp-content/uploads/2020/05/fn_handbook.pdf

Occupational Health and Safety Act

Health and safety in the workplace are protected by Nova Scotia's Occupational Health and Safety Act and Regulations. The Department of Labour and Advanced Education is a key part of Nova Scotia's Workplace Safety and Insurance System. Their staff promote, coordinate, administer, and enforce occupational health and safety for you.

http://www.worksafeforlife.ca/Home/Injury-Prevention/Employer-Checklists

Workers Compensation Act

Only businesses with 3 or more employees need to have Workers' Compensation. Coverage is optional for businesses with less than 3 employees The Workers' Compensation Act (the "Act") provides the legal framework for the administration of the WCB's prevention, return to work, assessment, and compensation programs. WCB Overview. WCB Nova Scotia is the province's provider of workplace injury insurance. Pursuant to the Workers' Compensation Act, we provide workplace injury insurance to workers and employers in Nova Scotia.

https://www.wcb.ns.ca/Workplace-Injury-Insurance/Do-I-Need-to-Register.aspx

Accessibility Act

Nova Scotia's Accessibility Act, also known as Bill 59, was passed in April 2017. The legislation aims to make Nova Scotia inclusive and barrier-free by 2030. The government is working with people with disabilities, and public and private sector organizations to create six standards, including one for employers, for an accessible Nova Scotia. These standards will be drafted in phases and will be available for public consultation before coming into force.

https://siteimprove.com/en-ca/accessibility/nova-scotia-accessibility-act/#what_is_nova_scotia's_accessibility_act?

NORTHWEST TERRITORIES

Employment Standards Act

The Act applies to most employees and employers that perform work in the Northwest Territories and sets out the minimum employment standards for the NWT.

https://www.ece.gov.nt.ca/en/services/employment-standards

Human Rights Act

The NWT Human Rights Act protects the equal human rights of everyone in the NWT. It is against the law to discriminate against anyone in any of the following areas: Employment including looking for work. The NWT Human Rights Act applies to businesses, industries, organizations, and government agencies which are regulated by the NWT.

http://nwthumanrights.ca/your-rights/jurisdiction/

Many of the human rights protected under the Canadian Human Rights Act are specific to First Nations. The Human Rights Handbook for First Nations was created specifically for people who work for First Nations governing bodies responsible for providing service to First Nations communities.

http://nwthumanrights.ca/wp-content/uploads/2020/05/fn_handbook.pdf

Safety Act, Occupational Health and Safety Regulations

The Workplace Safety & Compensation Commission is the agency responsible for administering the Act and the Regulations for both NWT and Nunavut. No matter how small your business is or the type of work you do, you must provide and maintain a safe workplace. Developing an Occupational Health and Safety (OHS) Program builds a framework to manage health and safety as an integral part of your business. If you operate a business in the Northwest Territories or Nunavut, you must register with the WSCC. Employers who fail to register within the ten days of operating or establishing a business are charged a penalty.

https://www.wscc.nt.ca/employer-services

NUNAVUT

Employment Standards Act

The Act sets out the general rights and responsibilities for both employers and employees.

http://nu-lsco.ca/faq-s#:~:text=THE%20LABOUR%20STANDARDS%20ACT%20IS,FOR%20BOTH%20EMPLOYERS%20AND%20EMPLOYEES.

Human Rights Act

The Act protects the equality rights of Nunavummiut and safeguards an equal opportunity to enjoy a full and productive life free from discrimination and harassment.

http://www.nhrt.ca/english/resources

Safety Act, Occupational Health and Safety Regulations

The Workplace Safety & Compensation Commission is the agency responsible for administering the Act and the Regulations for both NWT and Nunavut. No matter how small your business is or the type of work you do, you must provide and maintain a safe workplace. Developing an Occupational Health and Safety (OHS) Program builds a framework to manage health and safety as an integral part of your business. If you operate a business in the Northwest Territories or Nunavut, you must register with the WSCC. Employers who fail to register within the ten days of operating or establishing a business are charged a penalty.

https://www.wscc.nt.ca/employer-services

ONTARIO

Employment Standards Act

The Employment Standards Act, 2000 (ESA) provides the minimum standards for most employees working in Ontario. It sets out the rights and responsibilities of employees and employers in most Ontario workplaces.

https://www.ontario.ca/document/your-guide-employment-standards-act-0

Accessibility for Ontarians with Disabilities Act

The Accessibility for Ontarians with Disabilities Act's purpose is to improve accessibility standards for Ontarians with physical and mental disabilities to all public establishments by 2025.

https://www.aoda.ca/what-is-the-employment-standard/

Ontario Human Rights Code

The Ontario Human Rights Code gives everybody equal rights and opportunities without discrimination, harassment, and reprisal with respect to employment, trade, self-governing profession, services, good, contracts and facilities.

http://www.ohrc.on.ca/en/policy-primer-guide-developing-human-rights-policies-and-procedures

Occupational Health & Safety Act

This Act sets out the rights and duties of all parties in the workplace. It establishes procedures for dealing with workplace hazards and it provides for enforcement of the law where compliance has not been achieved voluntarily by workplace parties.

https://www.ontario.ca/document/guide-occupational-health-and-safety-act

Workplace Safety & Insurance Act

The Workplace Safety & Insurance Board is the provincial agency that provides support and insurance for workers injured on the job.

https://www.wsib.ca/en